

COMMISSION IMPLEMENTING DECISION

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COMMISSION IMPLEMENTING DECISION

of 29 April 2014

establishing the Work Programme for the Union Customs Code

(2014/255/EU)

THE EUROPEAN COMMISSION,

Having regard to the Treaty on the Functioning of the European Union,

Having regard to Regulation (EU) No 952/2013 of the European Parliament and of the Council of 9 October 2013 laying down the Union Customs Code (1), and in particular Article 281 thereof,

Whereas:

(1)

Article 280 of Regulation (EU) No 952/2013 laying down the Union Customs Code (hereinafter referred to as 'the Code') provides that the Commission is to draw up a work programme relating the development and deployment of the electronic systems. The work programme is in particular important for the establishment of the transitional measures related to the electronic systems and the timing for the cases where systems are not yet operational by the date of application of the Code, i.e. 1 May 2016.

(2)

The Code provides that all exchange of information between customs authorities and between economic operators and customs authorities and storage of such information is to be made using electronic data processing techniques and that information and communication systems are to offer the same facilities to economic operators in all Member States. The work programme should therefore set out an extensive plan for the implementation of electronic systems in order to ensure the correct application of the Code.

(3)

Accordingly, the work programme should contain a list of the electronic systems which should be developed by the Member States and the Commission, in close cooperation, in order for the Code to become applicable in practice. That list is based on the existing planning document related to all IT related customs projects, called the multi-annual strategic plan ('MASP'), which is drawn up in accordance with Decision No 70/2008/EC of the European Parliament and of the Council (2) and in particular Article 4 and Article 8(2) thereof. The electronic systems referred to in the work programme should be subject to the same project management approach and prepared and developed as established in the MASP.

(4)

The work programme should define and describe the electronic systems as well as the related legal basis, the key milestones and the envisaged dates for starting operations. These dates should be referred to as 'target start dates of deployment'. The date of deployment of the electronic systems should constitute the target end date of the transitional period.

(5)

The electronic systems referred to in the work programme should be selected in view of their expected impact in terms of the priorities defined in the Code. One of the main priorities in this regard is to be able to offer economic operators a wide range of electronic customs services throughout the customs territory of the Union. Furthermore, the electronic systems should aim at enhancing the efficiency, effectiveness and harmonisation of customs processes across the Union. The order of and the timetable for the deployment of the systems included in the work programme should be based on practical and project management considerations such as the spreading of efforts and resources, the interconnection between the projects, the specific prerequisites of each system and the project maturity. As such, the work programme aims to plan and manage the development of the electronic systems in a proper and staged manner.

(6)

As the electronic systems referred to in Article 16(1) of the Code are to be developed, deployed and maintained by the Member States, in cooperation with the Commission, the Commission and the Member States should work together to ensure that the preparation and implementation of the electronic systems are managed in line with the work programme and that appropriate measures are taken to plan, design, develop and deploy the systems identified in a coordinated and timely manner.

(7)

In order to ensure synchronicity between the work programme and the MASP the work programme should be updated at the same time as the MASP.

(8)

The measures provided for in this decision are in accordance with the opinion of the Customs Code Committee,

HAS ADOPTED THIS DECISION:

Article 1

Subject matter

This Decision lays down the work programme as provided for in Article 280(1) of Regulation (EU) No 952/2013 laying down the Union Customs Code ('the Code').

The work programme is annexed to this Decision.

Article 2

Implementation

1. The Commission and the Member States shall take the necessary actions to cooperate and implement the work programme.
2. The projects specified in the work programme and the preparation and implementation of the related electronic systems shall be managed in a manner consistent with the work programme.
3. The Commission shall undertake to search for a common understanding and agreement with the Member States on the project scope, design, requirements and architecture of the electronic systems in order to initiate the projects of the work programme. Where relevant, the Commission shall also consult and take the views of the economic operators into account.

Article 3

Updates

1. The work programme shall be subject to regular updates in order to ensure alignment and adjustments with the latest developments in the implementation of the Code and to take into account the actual progress made in the preparation and development of the electronic systems, and in particular as regards the availability of commonly agreed specifications and the realisation of the entering into operation of the electronic systems.

2. In order to ensure synchronicity between the work programme and the multi-annual strategic plan ('MASP') the work programme shall be updated at least every year.

This Decision shall enter into force on the day following that of its publication in the Official Journal of the European Union.

Done at Brussels, 29 April 2014.